CONFIDENTIAL TRANSACTION INTELLIGENCE // FOR INSTITUTIONAL EVALUATION ONLY

TRANSACTION UNDER AUDIT

Penske Automotive Group, Inc. (public unaffiliated stockholders) / Motown Acquisition Corp. (consortium entity owned by Penske Corporation / Penske Automotive Holdings Corp. and Mitsui & Co., Ltd. / Mitsui & Co. (U.S.A.), Inc.)



Independent adversarial transaction risk audit, voting topology mapping, and contractual vulnerability analysis.

TARGET:	Penske Automotive Group, Inc. (public unaffiliated stockholders) (NYSE: PAG)	**ACQUIRER:**	Motown Acquisition Corp. (consortium entity owned by Penske Corporati
STRUCTURE:	Merger / Controller Take-Private (Cash Merger)	**STATUS:**	DEFINITIVE AGREEMENT
FILINGS:	SEC EDGAR Definitive Filings (8-K, Ex-2.1, 10-K, 13D)	**STANDARD:**	ZERO-INVENTION / FACT ONLY
DATE:	22 October 2026	**DOSSIER ID:**	#RAVEN-AUDIT-PENS-MOTO-20261021-REV1

COMPOSITE TRANSACTION RISK RATING: 68 / 100 ELEVATED

TRANSACTION CONTEXT & STATUTORY SUMMARY

Penske Automotive Group, Inc. (NYSE: PAG) faces structural vulnerability in its proposed take-private transaction by Motown Acquisition Corp. (64% Penske Corporation, 36% Mitsui & Co.). The transaction relies on a bifurcated stockholder approval structure where the Kahn v. M&F Worldwide Corp. (MFW) minority cleansing prong is contractually defined as 'a majority of the votes cast by the disinterested stockholders (as defined in Section 144 of the DGCL)' rather than a majority of all outstanding unaffiliated shares. This votes-cast formulation creates an identifiable litigation target under Delaware Chancery Court entire fairness jurisprudence, compounded by an 8.6% premium over the pre-announcement unaffected price ($212.00 cash vs. $210.00 initial bid, $195.21 unaffected baseline). Concurrently, closing is conditioned on securing complex OEM change-of-control consents across global franchise networks and executing debt backstops for a $502.7M mandatory 101% par Change-of-Control Put on PAG's 3.75% Senior Subordinated Notes due 2029.



EVIDENTIARY VERIFICATION & INGESTION INTEGRITY ATTESTATION

PROVENANCE: SHA-256 cryptographic digest of ingested SEC EDGAR filings as of audit date (22 October 2026).

SCOPE: Proves ingestion-phase textual immutability and tamper-evident analytical provenance (internal algorithmic verification; does not constitute external independent CPA/auditor third-party assurance or formal legal counsel opinion).

AUDITED CORPUS: Forms 8-K, Ex-2.1, PREM14A, 10-K | CONFIDENCE: MEDIUM DIGEST: #SHA256-AUDIT-PENS-MOTO-20261021-REV1